

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X

THE ESTATE OF LEONARD BEST, by the
Administrator of his Estate, BRIDGET BEST,

Plaintiff,

Index No.:

- against -

CITY OF NEW YORK, CESAR REYES, and
and JOHN and JANE DOES 1-5

SUMMONS

Venue is designated in
Kings County

Defendants.

----- X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for
plaintiff an Answer to the Complaint in this action within 20 days after service of this
Summons, exclusive of the date of service (or within 30 days after the service is complete if
this summons is not personally delivered to you within the State of New York). In case of
your failure to appear or answer, judgment will be taken against you by default for the relief
demanded in the complaint.

[Remainder of Page Intentionally Blank]

The basis of the venue designated is CPLR §§ 503 and 504, as the decedent and the Administrator are residents of Kings County and because it is also the county in which the events at issue occurred.

Dated: New York, New York
January 23, 2023

LUMER LAW GROUP
Attorneys for Plaintiff

By:



Michael Lumer, Esq.
233 Broadway, Suite 900
New York, New York 10279
(212) 566-5060

Defendants' Addresses:

The City of New York
100 Church Street
New York, New York 10007

Sgt. Cesar Reyes, Shield 3087
72 Precinct
830 4th Avenue
Brooklyn, NY, 11232-1702

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X

THE ESTATE OF LEONARD BEST, by the
Administrator of his Estate, BRIDGET BEST,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINTCITY OF NEW YORK, CESAR REYES, and
and JOHN and JANE DOES 1-5,

Defendants.

----- X

Plaintiff, the ESTATE OF LEONARD BEST, by its attorneys, the Lumer Law Group, hereby alleges upon information and belief as follows:

1. At all times hereinafter mentioned prior to his death, Leonard Best was an adult male resident of Kings County, in the City and State of New York.
2. On or about March 16, 2020, Leonard Best passed away. His cause of death is unrelated to this action, which concerns Best's false arrest.
3. On or about January 24, 2022, Best's mother, and the Administrator of his estate, Bridget Best, applied for letters of administration.
4. On January 23, 2023, Bridget Best received temporary letters of administration from the Kings County Surrogate's Court that were signed by the Hon. Rosemarie Montalbano on January 17, 2023.
5. On or about January 23, 2023, the Kings County Surrogate Court issued Temporary Letters of Administration appointing Best's mother, Bridget Best, as the Administrator of Best's estate.

6. At all relevant times hereinafter mentioned, defendant City of New York (the “City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including but not limited to, the New York City Police Department (“NYPD”) and its employees and agents.

7. At all relevant times hereinafter mentioned, defendant CESAR REYES, Shield 3087 and Tax 952159, was employed by the City as a member of the NYPD. REYES is sued herein in his individual and official capacities.

8. At all relevant times hereinafter mentioned, defendants JOHN and JANE DOES 1-5 were members of the NYPD whose identities are unknown to Best. The DOE defendants are sued herein in their individual and official capacities.

9. This action was timely commenced, based, in part, on the tolling provisions enacted by Governor Cuomo by Executive Order 202.6 *et seq.*, which tolled the statute of limitations, through November 4, 2020.

10. On or about the morning of June 7, 2019, Best was lawfully present in his residence at 5808 Farragut Road in Kings County, where he lived with his fiancée and her three minor children.

11. At that time, members of the NYPD, including the individual defendants, forcibly entered the premises without warning and with weapons drawn, and seized and handcuffed Best and the other members of the household, who were all found in their respective bedrooms.

12. The officers did not display nor produce a warrant authorizing their entry into the premises, and had no reasonable basis to believe that they had consent to enter the premises or that any exigency existed that would justify their entry.

13. No contraband or weapons of any sort were found anywhere in Best's bedroom or anywhere else in the premises.

14. At no time was there probable cause for the plaintiff's arrest nor was there any reasonable basis for the individual defendants to believe that probable cause for plaintiff's arrest existed.

15. Despite the absence of legal cause to seize Best, much less perform a custodial arrest, Best was arrested, handcuffed, and transported to a local NYPD station house, where he was jailed against his will for a period of time.

16. Best was subsequently transported to Kings County Central Booking, where he was held for many more hours.

17. While plaintiff was imprisoned by the defendants, Reyes completed or reviewed and approved arrest paperwork in which he claimed that Best had possessed a quantity of marijuana and paraphernalia.

18. Upon information and belief, no marijuana, nor any paraphernalia, was found anywhere within the residence, and Reyes knew that this was so when he drafted the arrest paperwork.

19. Reyes forwarded these false allegations to the Kings County District Attorney (“KCDA”) in order to justify the arrest and to persuade the KCDA to commence Best’s criminal prosecution.

20. Upon information and belief, Reyes also spoke with one or more members of the KCDA about the arrest and confirmed this falsified version of events in which he manufactured a basis for arresting Best through the deliberate use of the false claim that marijuana was found in the kitchen.

21. Notwithstanding these false charges, the KCDA ultimately declined to prosecute Best and he was later released from custody without being charged in any way.

22. At no time did any of the Doe defendants take any steps to intercede in Reyes’ conduct or otherwise inform supervisory officers within the NYPD or members of the KCDA about Reyes’ actions.

23. That at all times relevant herein, the individual defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York’s interests and without legal justification or excuse.

24. Best passed away on March 16, 2020, following a motor vehicle accident.

FIRST CAUSE OF ACTION

(Violation of Civil Rights: 42 USC §1983)

25. Plaintiff ESTATE OF LEONARD BEST repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

26. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

27. All of the aforementioned acts deprived BEST of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

28. The acts complained of were carried out by the individual defendants in their capacity as police officers, with all the actual and/or apparent authority attendant thereto, and pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

29. The individual defendants, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the NYPD and thereby the City of New York, which is forbidden by the Constitution of the United States.

30. The acts complained of deprived plaintiff BEST of his right not to be deprived of liberty without due process of law, to be free from seizure and arrest absent probable cause, and to not be falsely imprisoned.

31. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused BEST to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SECOND CAUSE OF ACTION(False Arrest and Imprisonment: 42 USC §1983)

32. Plaintiff ESTATE OF LEONARD BEST repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

33. The individual defendants willfully and intentionally seized, arrested, and caused BEST to be imprisoned without any lawful basis, much less probable cause, and lacked any reasonable basis to believe probable cause existed.

34. To the extent that any individual defendant did not affirmatively seize or place plaintiff under arrest, that defendant was aware that BEST's constitutional rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiff from harm, despite ample opportunity to do so.

35. As a result of his unlawful arrest by the defendants, plaintiff was imprisoned and deprived of his liberty.

36. Plaintiff was conscious of the deprivation of his liberty and did not consent to any such deprivation. To the extent that either individual defendant did not affirmatively seize or place plaintiff under arrest, or fabricate evidence or engage in direct communications with the BCDA as alleged herein, said defendant was aware that the other individual defendant was or would be engaged in this unconstitutional conduct, and that plaintiff's constitutional rights were being and would continue to be violated, and yet failed to take any

steps to intervene in said unconstitutional conduct or otherwise protect plaintiff from harm, despite ample opportunity to do so.

37. The individual defendants, individually and collectively, subjected plaintiff to (i) false arrest and imprisonment, (ii) denial of due process and the right to a fair trial through the fabrication of evidence, and (iii) malicious prosecution, thereby violating, or aiding and abetting in the violation of, plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

38. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused BEST to suffer emotional and physical injuries, mental anguish, lost earnings, imprisonment and the deprivation of liberty, as well as the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

THIRD CAUSE OF ACTION

(Monell Claim: 42 USC §1983)

39. Plaintiff ESTATE OF LEONARD BEST repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

40. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

41. The individual defendants' false arrest of BEST, and the failure to intervene or otherwise act to prevent or mitigate the harms being inflicted by their fellow defendants, were carried out in accordance with an existing plan or policy created or otherwise condoned

by the municipal defendant designed to increase the number of arrests made without regard to probable cause, and with deliberate indifference to the likelihood that BEST's rights would be violated and he would be harmed by this conduct.

42. More precisely, under this policy or plan, upon information and belief, members of the NYPD knowingly make arrests of individuals regardless of whether there are any factual basis for the charges, particularly in connection with the execution of search warrants or in matters concerning allegations of possession of marijuana or controlled substances. The arresting officer(s) would then make false statements of fact as to seeing the individual(s) being arrested in actual or constructive possession of the narcotics in question.

43. The purpose of this policy or plan was to generate large numbers of arrests to help the NYPD create a false impression of positive activity by their officers and to generate additional work requiring and otherwise resulting in overtime for the arresting officer(s).

44. In addition, members of the NYPD are evaluated, at least in part, on the basis of their "activity" which is measured by the number of arrests made and summonses issued, and other, similar criteria. Thus, officers are incentivized to make arrests and engage in other police activity without sufficient legal cause in order to raise their levels of "activity" and improve the perception of their job performance.

45. The NYPD generally tracks the number of arrests made by each officer but does not take into account the outcome of these arrests, even though this information is available to the NYPD. As a result, members of the NYPD are well aware that they are being

evaluated based in large part the number of arrests made, and that their supervisors do not care whether these arrests lead to actual criminal prosecutions, much less convictions.

46. Accordingly, officers are tacitly encouraged or pressured to make as many arrests as possible, which has caused and will continue to cause, its officers, including the individual defendants and their colleagues, to make arrests regardless of whether there was any factual basis for the charges. The officer(s) then fabricate claims of having seen the person(s) being arrested in possession of weapons or illegal narcotics or otherwise engaged in criminal activity.

47. The purpose of this policy or plan was to generate large numbers of arrests within the individual commands therein, in order to create a false or misleading impression of positive activity by their officers and satisfying internal quotas.

48. The policy or plan was kept in effect from, at least, 2006 through, at least, the date of plaintiff's arrest, despite the municipal defendant's knowledge that county prosecutors were often not charging the individuals arrested, or otherwise not actively pursuing their prosecutions, or that there was insufficient evidence to justify the arrests and illegal searches, or that the arresting officers were seeking to bolster the arrests with false allegations, and that the prosecutors often had found insufficient cause to justify the imposition of charges or continued prosecution if charges were filed.

49. Rather than take steps to abolish this plainly unconstitutional and unlawful police, the municipal defendant continued to tacitly endorse this policy of deliberate misconduct.

50. It is manifestly clear through the litigation filed in New York State Supreme Court throughout the five boroughs, as well as the Eastern and Southern Districts of New York, that countless civilians have alleged that members of the NYPD deliberately arrested them without probable cause, particularly incident to search warrant executions. Thus, even if the municipal defendant was not the architect of the policy causing these unlawful arrests, they were certainly on notice of the practice.

51. It is therefore clear that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York, at the bare minimum, has been on notice was deliberately indifferent to the risk that the undue emphasis on arrest quotas, or minimum activity levels, particularly when coupled with a deliberately indifferent level of supervision to false arrests and fabricated factual claims, would lead to the violation of individuals' constitutional rights in general, and caused the violation of BEST's rights in particular.

52. By reason thereof, the municipal defendant has violated 42 U.S.C. §1983 and caused BEST to suffer emotional and physical injuries, mental anguish, lost earnings, imprisonment and the deprivation of liberty, as well as the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court.

WHEREFORE, the plaintiff demands judgment against defendants jointly and severally as follows:

- i. actual and compensatory damages against each defendant in an amount to be determined at trial;
- ii. punitive damages against each individual defendant in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and,
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
July 23, 2023

LUMER LAW GROUP
Attorneys for Plaintiff

By: _____



Michael Lumer, Esq.
233 Broadway, Suite 900
New York, New York 10279
(212) 566-5060

VERIFICATION

Michael Lumer, affirms under penalty of perjury that:

1. I am the attorney for the plaintiff in the within action, am duly admitted to practice law before the Courts of New York State, and make this verification pursuant to CPLR 2106 and further pursuant to CPLR 3020(d)(3).
2. This verification is based on extensive interviews with Leonard Best, and later, Bridget Best, and a review of the files and records in my possession.
3. I have read and know the contents of the foregoing complaint, and verify the same are true based on my knowledge, except as to those matters alleged upon information and belief, and as to those matters, I believe them to be true.
4. Bridget Best, the administrator of the Estate of Leonard Best, does not reside in the same county wherein my office is located and therefore I make this verification on plaintiff's behalf pursuant to CPLR 3020(d)(3).

Dated: New York, New York
January 23, 2023



Michael Lumer